

1 ENGROSSED HOUSE
2 BILL NO. 4253

By: Kannady of the House

3 and

4 Hines of the Senate
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6 An Act relating to school employees; amending 70 O.S.
7 2021, Section 509.11, which relates to equal access
8 to employees of a school district; modifying what
9 constitutes access regarding statewide professional
10 educators' associations; prohibiting equal access
11 from being conditional on certain provisions or
12 services; directing certain communications to be
13 classified as promotional events; permitting
14 distribution of certain materials in school
15 mailboxes; prohibiting a school district from
16 requiring a fee or other payment from statewide
17 professional educators' associations for certain
18 activities; requiring certain notification if certain
19 equal access is denied; requiring notification of the
20 State Board of Education if equal access is not
21 granted within certain time period; updating
22 statutory language; allowing school district
23 employees to terminate membership in certain
24 organization at any time; prohibiting an organization
from taking certain actions; prohibiting certain
policy or agreement from placing certain conditions
or requirements on certain initiation or termination;
providing certain construction; and providing for
codification.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 509.11, is
amended to read as follows:

Section 509.11. A. No school district, employee of a school
district, or employee organization shall deny by any means,

1 including a collective bargaining agreement, a statewide
2 professional educators' association equal access to employees of the
3 school district, to the same extent that access is granted to other
4 educators' associations. For purposes of this section, access shall
5 include, but is not limited to:

6 1. Setting up informational tables at in-service or other
7 similar teacher meetings;

8 2. Speaking at in-service or other similar teacher meetings;

9 3. Distributing information ~~in school mail boxes or~~ through the
10 school ~~e-mail~~ electronic mail system;

11 4. Utilizing school district meeting rooms during nonworking
12 hours;

13 5. Representing employees in employment matters, when requested
14 by the employee;

15 6. Posting information on school district bulletin boards or
16 other common space displays; and

17 7. ~~Utilizing school district printing services~~ Promotional
18 events.

19 B. Any association which utilizes school district facilities or
20 services shall reimburse the district for any costs incurred by the
21 district due to association activities.

22 C. Equal access shall not be conditional on provisions or
23 services requested by school districts including, but not limited
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1 to, furnished meals, snacks, gifts, donations, or other types of
2 sponsored activities.

3 D. Communication by an employee, volunteer, or member of a
4 statewide professional educators' association on behalf of the
5 association or a local affiliate group that pertains to a collective
6 bargaining agreement or negotiated employment contract pursuant to
7 Section 509.2 of this title shall, for the purposes of this section,
8 be classified as a promotional event hosted by the statewide
9 association, and all other statewide professional educators'
10 associations and their employees shall be granted equal access to
11 communicate with school employees to the same extent. For the
12 purposes of this section, communication includes, but is not limited
13 to, presentations, speaking events, meetings, electronic mails,
14 informational displays, and virtual forum posts.

15 E. Distribution of promotional materials to all employees in
16 school mailboxes by employees or associated members of a statewide
17 professional educators' association shall be permitted. Promotional
18 materials may include, but are not limited to, promotional
19 brochures, competitor comparison brochures, informational pamphlets,
20 membership applications, gift items, and association member gifts.

21 F. School districts shall not require a fee or other payment
22 from statewide professional educators' associations for access,
23 promotional material review, promotional material distribution, or
24 other related activities.

1 G. 1. A statewide professional educators' association that is
2 not allowed access as provided for in this section shall notify the
3 board of education of the school district where access was denied.

4 2. Upon notification, if the school district board of education
5 does not ensure equal access is provided to the statewide
6 professional educators' association within fifteen (15) days, the
7 association shall notify the State Board of Education.

8 SECTION 2. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 509.13 of Title 70, unless there
10 is created a duplication in numbering, reads as follows:

11 A. A school district employee who is a member of an employee
12 organization designated pursuant to Section 509.2 of Title 70 of the
13 Oklahoma Statutes may terminate membership in the employee
14 organization at any time. Upon receipt of a school district
15 employee's termination of membership via mail or electronic mail,
16 the employee organization shall terminate the employee's membership
17 and cease collection of dues.

18 B. An employee organization designated pursuant to Section
19 509.2 of Title 70 of the Oklahoma Statutes shall be prohibited from:

20 1. Limiting a school district employee's right to terminate his
21 or her membership only during certain dates or by using specific
22 forms; and

23 2. Requiring a school district employee to disclose the reason
24 for his or her membership termination.

1 C. 1. No school district board of education policy or
2 negotiated agreement shall place any other conditions or
3 requirements on any school district employee to initiate or
4 terminate membership in an employee organization.

5 2. Any negotiated agreement in effect upon the effective date
6 of this act that places any conditions or requirements on any school
7 district employee to initiate or terminate membership in an employee
8 organization shall be null and void upon the effective date of this
9 act.

10 Passed the House of Representatives the 26th day of March, 2026.

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Presiding Officer of the House
of Representatives

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15 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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